

Court No. - 39

Case :- WRIT - C No. - 12916 of 2021

Petitioner :- Mohammad Ashkeen

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Roshan Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

Heard Sri Roshan Kumar Singh, learned counsel for the petitioner, Sri Pranjal Mehrotra, learned counsel appearing for the Electricity Department and learned Standing Counsel for the State- respondents.

The writ petition has been filed with a prayer to challenge the recovery notice, which has been issued after final assessment of the electricity consumed by the petitioner. The dispute in essence is about the electricity bill.

The appropriate statutory remedy is to challenge the final assessment by approaching the competent authority under Section 127 of the U.P. Electricity Act, 2003 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005.

At this stage, the learned counsel for the petitioner states that liberty may be granted to the petitioner to approach the competent authority under Section 127 of the U.P. Electricity Act, 2003 and looking to the current economic conditions due to second wave of Covid-19 the recovery notice issued against the petitioner in the month of February, 2021 may not be pressed.

Considering the above submission, the writ petition is disposed of with the following directions:-

1. The petitioner shall approach the competent authority by filing an appeal under Section 127 of the U.P. Electricity Act, 2003 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005 within one month from today alongwith the copy of this order.
2. On receipt of the said appeal, the competent authority shall take an expeditious decision considering all the grounds of appeal/ objections of the petitioner within a further period of six weeks.

3. For a period of three months from today or till a fresh decision is taken by the appellate authority, whichever is earlier, the recovery pursuant to the notice dated 15.02.2021 issued against the petitioner shall not be pressed.

4. It is further directed that in case, the petitioner fails to file the appeal within the time given above, it would be open for the respondent- Department to proceed in accordance with law.

Order Date :- 28.6.2021

Radhika